

26STCV09342 26STCV09342

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-28

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Case Number: 26STCV09342 Hearing Date: July 28, 2026 Dept: 529

NOUSHIN NOURANI VS BRURIA LEAH RABI HAKAKHA

DEMURRER

TO COMPLAINT

Date of Hearing: July 28, 2026 Trial

Date: September 14, 2026

Department: 529 Case

No.: 26STCV09342

Moving Party: Defendant Bruria Leah Rabi Hakakha

Responding

Party: Plaintiff Noushin Nourani

Meet and

Confer: Yes. Ilouliau Decl.

BACKGROUND

On March 23,

2026, Plaintiff Noushin Nourani filed a complaint against Defendant Bruria Leah

Rabi Hakakha for slander per se, intentional infliction of emotional distress,

negligent infliction of emotional distress, and negligence. Plaintiff alleges

since November of 2025, Defendant has repeatedly told people that Plaintiff was

a whore.

[TENTATIVE]

RULING:

Defendant Bruria Leah

Rabi Hakakha's Demurrer to the Complaint is SUSTAINED IN PART.

DISCUSSION

Defendant demurs to the complaint on the grounds Plaintiff fails to allege facts sufficient to support any cause of action against Defendant. Defendant contends the alleged defamatory statement ("whore") constitutes non-actionable opinion and rhetorical insult, the negligence based claims are improperly pled and duplicative, and Plaintiff fails to establish essential elements under California law.

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

Defamation

Defendant argues to state a claim for defamation, Plaintiff must allege a false statement of fact, not opinion. Defendant maintains California courts have consistently held that name-calling, insults, and epithets—including terms like "whore"—are non-actionable opinion or rhetorical hyperbole, not provable factual assertions. Defendant also argues

the claim fails to allege the exact words, who said them, to who and when.

Defendant cites no authority to support their proposition that epithets, such as whore, cannot be a claim for defamation. *Contento v. Mitchell* (1972) 28 Cal.App.3d 356 has expressly found that a defendant, in the presence of third parties, calling the plaintiff a 'bitch', 'thief', and 'dirty whore' involved slander per se. Moreover, "the issue of whether a statement is true or substantially true is normally considered to be a factual one." (*Hughes v. Hughes* (2004) 122 Cal.App.4th 931, 937.) Here, Plaintiff has sufficiently alleged Defendant repeatedly told other people Plaintiff was a whore. The complaint alleges Defendant failed to use reasonable care to determine the truth or falsity of the statements and nonetheless, made them. This is sufficient for the purposes of a demurrer.

Based on the foregoing, the demurrer to the first cause of action for defamation is OVERRULED.

Negligent Infliction of Emotional Distress

Defendant demurs to the third cause of action for negligent infliction of emotional distress on the grounds it is not an independent tort and Plaintiff fails to establish any duty owed by Defendant.

The court agrees there's no independent duty beyond what's already covered by defamation law. Accordingly, the court SUSTAINS the demurrer to the third cause of action for negligent infliction of emotional distress without leave to amend.

Negligence

Defendant demurs to the fourth cause of action for negligence on the grounds Plaintiff fails to identify any legally recognized duty of care owed by Defendant, Plaintiff improperly attempts to recast alleged intentional conduct as negligence and is duplicative of other claims.

As noted above, Plaintiff has not demonstrated an independent negligence tort for making false statements.

Based on the foregoing, the demurrer to the negligence cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

Uncertainty

The court overrules the demurrer for uncertainty. "Demurrers for uncertainty under Code of Civil Procedure section 430.10, subdivision (e) are disfavored. [Citation.] 'A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.' [Citation.] [And a] demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant's knowledge." (Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822.)